

Rajasthan Electricity Regulatory Commission (Fees for Petitions) Regulations, 2005

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Rajasthan Electricity Regulatory Commission (Fees for Petitions) Regulations, 2005

Rule RAJASTHAN-ELECTRICITY-REGULATORY-COMMISSION-FEES-FOR-PETITIONS-REGULATIONS-2005 of 2005

Published on 12 September 2005

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Rajasthan Electricity Regulatory Commission (Fees for Petitions) Regulations, 2005

Published vide Notification No. RERC/Secy./Reg. 37, dated 12.9.2005

Last Updated 29th May, 2019

No. RERC/Secy./Reg. 37. - In exercise of powers conferred under Section 181 of the Electricity Act, 2003 read with section 64(1) and 86(g) of that act, regulation 2 of the Rajasthan Electricity Regulatory Commission (Transaction of Business) Regulations, 2004 & regulations 21(2) & 59 to 61, 70 of Rajasthan Electricity Regulatory Commission (Conduct of Business) regulations and all powers enabling it in that behalf, the Rajasthan Electricity Regulatory Commission, hereby makes the following regulations, namely:-

General

1.

Short title and Commencement.

(1)

These Regulations may be called the Rajasthan Electricity Regulatory Commission (Fees for Petitions) Regulations, 2005.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these regulations unless the context otherwise requires:-

(i)

"Act" means the Electricity Act, 2003 (36 of 2003).

(ii)

"ARR" means the expected Aggregate Revenue Requirement as specified in clause 3 of RERC (Terms & Conditions for Determination of Tariff Regulations, 2004).

(iii)

"Commission" means the Rajasthan Electricity Regulatory Commission.

(iv)

"Generation Capacity" means installed capacity as per name plate rating of generating units of power plant.

(v)

"intra-state trading" means the buying and selling of electricity by an electricity trader within the territory of the State of Rajasthan.

(vi)

"Licensee" means a person who has been granted a license & includes deemed licensee & persons exempted from license under Section 14 of the Act.

(2)

Words and expressions occurring in these regulations and not defined herein above shall bear the same meaning assigned to them in the Act.

3.

Fee on applications or petitions.

(1)

Fees payable with every petition shall be as specified in the Schedule to these regulations.

(2)

All fees shall be payable at Jaipur by means of a crossed demand draft/pay order/ postal order drawn in favour of Secretary, Rajasthan Electricity Regulatory Commission.

(3)

The Commission shall issue a receipt for the fee paid.

(4)

The fees received by the Commission under these regulations shall be deposited in a bank account to be maintained by the Commission at such bank and in such branches as the Commission may direct from time to time.

4.

Repeal.

- The Rajasthan Electricity Regulatory Commission (Fee for Petitions) Regulations, 2000, as amended to date, shall stand repealed from the date of coming into force of these regulations.

of Fee Structure

S. No.

Nature of petition/application

Fees(Rs.)

1

2

3

1.

Filing for ARR and/or petition for determination of generation tariff

(a) Conventional fuel based generating station

Rs. 5000/- (Rs. Five thousand) per MW or part thereof of generation capacity subject to minimum of Rs. One Lakh & Max. of Rs. fifteen lakhs for each generating station.

(b) Non-conventional and renewable sources of energy including co-generation
20% of 1(a) above.

2.

Petition for approval relating to competitive bidding process for procurement of power

(a) Bidding documents

As per Sr. No. 1(a) above

(b) Deviation in guidelines/bidding

Rs. 50,000 (Rs. Fifty thousand).

(c) Price of fuel

Rs. 1,00,000 (Rs. One lakh).

3.

Filing ARR and/or petition for determination of transmission tariff

Rs. 1000 (Rs. One thousand) for each MW or part thereof of transmission capacity subject to min. of Rs. one lakh & max. Rs. five lakh.

4.

Petition for determination of rates, charges, terms and conditions under proviso to sub-section (1) of section 36 of Act.

As per 3 above with a minimum of Rs. 25,000 (Rs. Twenty five thousand).

5.

Filing of ARR and/or determination of

Distribution Tariff by Distribution Licensee

0.01% (zero point zero one percentage) of revenue requirement as per petition (rounded off to nearest Rs. thousand) subject to minimum of Rs one lakh and max. of Rs. Fifteen lakh.

6.

Petition for determination of Variable cost adjustment (VCA) charges

0.01% (zero point zero one percentage) of the additional revenue (rounded off to nearest Rs. thousand).

7.

Petition for Determination of tariff for wheeling of electricity/Surcharge under the provisions of section 39, 40, 42 & 62 (1) (c) to be paid by the Licensee

Rs. 1,00,000/- (Rs. One lakh).

8.

Petition for amendment of RERC (Supply Code &

Connected Matter) Regulations, 2004 specified under section 43 to 48, 50, 55 & 56 excluding those required as a result of State Government directives.

Rs. 1,00,000/- (Rs. One lakh).

9.

Petition for review of Tariff Order filed by:

(a) Generation company/licensee/deemed licensee

Rs. 50,000/- (Rs. Fifty Thousand).

(b) Association representing HT consumers.

Rs. 20,000/- (Rs. Twenty Thousand).

(c) HT consumers having contract demand up to 5 MVA

Rs. 10,000/- (Rs. Ten Thousand).

(d) HT consumers having contract demand above 5 MVA

Rs. 20,000/- (Rs. Twenty thousand).

(e) Association representing LT consumers

Rs. 10,000/- (Rs. Ten Thousand).

(f) LT consumers

Rs. 1000/- (Rs. One Thousand).

10.

Petition for determination of SLDC fee & Charges

Rs. 1,00,000/- (Rs. One lakh).

11.

Petition for fixing Trading Margin in the intra-state trading.

Rs. 1,00,000/- (Rs. One lakh).

12.

Interlocutory Application where determination of tariff is not involved

Rs. 20,000/- (Rs. Twenty thousand).

13.

Application for licence/amendment of licence under section 18 of the Electricity Act, 2003
Same fee as prescribed by the State Government for application for grant of licence.

14.

Application for revocation of licence under sub-section (2) of section 19 of the Electricity Act, 2003.

As above for S. No. 13.

15.

Application seeking prior approval under section 17 of the Electricity Act, 2003

As above for S. No. 13.

16.

Application for approval of Power purchase & procurement.

Rs. 1,00,000/- (Rs. One lakh).

17.

Application under section 35 of the Electricity

Act, 2003 for seeking the use of intervening transmission facilities.

Rs. 10,000/- (Rs. Ten thousand).

18.

Petition for adjudication of a dispute under Secs. 9, 33(4), 35, 47(2), 67 & 86(l)(f) of the Act.

Rs. 10,000/- (Rs. Ten thousand).

19.

Appeal against the decision of a Chief Electrical Inspector or an Electrical Inspector section 162(2).

As specified in RERC (Appeals against orders of Electrical Inspector) Regulations, 2002.

20.

Applications seeking adjournment/seeking extension in time.

Rs. 1,000/- (Rs. one thousand).

21.

Petition for approval of investment Plan of the licensee

0.001 % (zero point zero zero one percentage) of investment rounded off to nearest Rs. thousand.

22.

Any other petition or Application

1. By licensee/generating company

1. Rs. 10,000/- (Rs. Ten thousand).

2. By Institution/Organisation/Company (Limited, Private Limited, Partnership, Proprietorship)

2. Rs. 5,000/- (Rs. Five thousand).

3. By Individual Consumer.

3. Rs. 500/- (Rs. Five hundred).

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